

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REQUEST FOR JUDICIAL NOTICE

(Evid. Code § 451–453)

Dept.: 610

Date: June 24, 2026

**PLAINTIFF’S SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE
OF INSURANCE CODE SECTION 790.03(H) AND TITLE 10, CALI-
FORNIA CODE OF REGULATIONS, SECTIONS 2695.1 THROUGH
2695.14 (FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed
by:** Plaintiff Dylan Franciscus Rosario, Self-represented

I. REQUEST UNDER EVIDENCE CODE SECTION 451

Pursuant to Evidence Code section 451, subdivisions (a) and (b), Plaintiff respectfully requests that
this Court take MANDATORY judicial notice of the following published California law:

- 1 1. Insurance Code section 790.03, subdivision (h), including subparagraphs (1) through (16),
2 defining the unfair claims settlement practices proscribed by California law and constituting
3 the statutory regulatory floor for claims handling conduct by every California-licensed insurer
4 including the Defendant insurer of record.
- 5 2. Title 10 of the California Code of Regulations, sections 2695.1 through 2695.14, which to-
6 gether comprise the Fair Claims Settlement Practices Regulations adopted by the California
7 Department of Insurance under authority of Insurance Code section 790.034 and which estab-
8 lish binding standards of conduct for claims handling, communications, investigation, docu-
9 mentation, denial, settlement, and complaint handling by every California-licensed insurer.

10 Judicial notice of state statutes and of regulations duly adopted and codified in the California
11 Code of Regulations is MANDATORY under Evidence Code section 451, subdivisions (a) and (b).
12 This request supplements, and does not displace, the Supplemental Request for Judicial Notice
13 (Insurance Code and FCSPR) filed by Plaintiff on May 8, 2026 in this action (Transaction ID
14 79429280) and lodges the same regulatory record for the consolidated June 24, 2026 hearing.
15 Procedural authority for the June 24, 2026 hearing line: This Court, by minute order entered May
16 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk), continued the consolidated mo-
17 tion calendar to June 24, 2026, 9:00 a.m., Department 302, and directed: “All parties immediately
18 to provide courtesy copies of their filings per SF Local Rule 2.7B with a cover letter reflecting the
19 new hearing date.” This Supplemental Request is tendered in conformity with that order.

21 **II. RELEVANCE TO THE JUNE 24, 2026 COHORT**

22 The regulatory floor established by Insurance Code section 790.03(h) and 10 CCR sections 2695.1
23 through 2695.14 is directly relevant to the operative June 24, 2026 cohort papers, including without
24 limitation:

25 A. The operative Opposition to Defendant’s Demurrer to Plaintiff’s First Amended Complaint. The
26 regulatory floor establishes, at the published-California-law layer, the standard of conduct against
27 which Defendant’s claims handling conduct is measured for purposes of the legal-sufficiency anal-
28 ysis under Code of Civil Procedure section 430.10 and applicable substantive insurance bad faith

1 law (Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809; Wilson v. 21st Century Ins.
2 Co. (2007) 42 Cal.4th 713; and progeny).

3 B. The operative Opposition to Defendant's Special Motion to Strike under Code of Civil Proce-
4 dure section 425.16, including the prong-two minimal-merit analysis (Baral v. Schnitt (2016) 1
5 Cal.5th 376, 384 to 396) and the gateway analysis under Code of Civil Procedure section 425.17,
6 subdivision (c), as recognized in Inland Oversight Committee v. City of San Bernardino (2017) 8
7 Cal.App.5th 1150, 1158.

8 C. Plaintiff's Renewed Motion for Leave to File a Third Amended Complaint under Code of Civil
9 Procedure section 1008, subdivision (b), to the extent any pleading-deficiency analysis at the June
10 24, 2026 hearing turns on the precision of regulatory predicate allegations now reflected in the
11 lodged Proposed Third Amended Complaint.

12 The regulatory provisions identified above are not the subject of any disputed evidentiary fact.
13 They are published, codified California law, and judicial notice of their text and existence is
14 MANDATORY under Evidence Code section 451.

16 **III. ENUMERATION OF REGULATORY PROVISIONS NOTICED**

17 For convenience, the regulatory provisions for which judicial notice is requested are enumerated
18 below by section heading. The published, codified text of each provision is the operative content
19 noticed by this request; Plaintiff does not request judicial notice of the truth of any factual or legal
20 contention by any party as to the regulatory text.

- 21 1. 10 CCR section 2695.1 (Preamble; Authority and Purpose).
- 22 2. 10 CCR section 2695.2 (Definitions).
- 23 3. 10 CCR section 2695.3 (File and Record Documentation).
- 24 4. 10 CCR section 2695.4 (Representation of Policy Provisions and Benefits).
- 25 5. 10 CCR section 2695.5 (Duties Upon Receipt of Communications).
- 26 6. 10 CCR section 2695.6 (Training and Certification).
- 27 7. 10 CCR section 2695.7 (Standards for Prompt, Fair, and Equitable Settlements).
- 28 8. 10 CCR section 2695.8 (Additional Standards Applicable to Automobile Insurance).

1 9. 10 CCR section 2695.9 (Additional Standards Applicable to First Party Residential and Com-
2 mercial Property Insurance Policies).

3 10. 10 CCR section 2695.10 (Additional Standards Applicable to Surety Insurance).

4 11. 10 CCR section 2695.11 (Additional Standards Applicable to Life and Disability Insurance
5 Claims).

6 12. 10 CCR section 2695.12 (Penalties).

7 13. 10 CCR section 2695.13 (Schedule of Penalties).

8 14. 10 CCR section 2695.14 (Severability).

9 Statutory provision noticed: Insurance Code section 790.03, subdivision (h), subparagraphs (1)
10 through (16), as codified.

11
12 **IV. PROPOSED ORDER LANGUAGE**

13 Plaintiff respectfully proposes that the Court enter the following:

14 “The Court takes MANDATORY judicial notice under Evidence Code section 451, subdivisions
15 (a) and (b), of: (1) Insurance Code section 790.03, subdivision (h), subparagraphs (1) through
16 (16); and (2) Title 10 of the California Code of Regulations, sections 2695.1 through 2695.14
17 (Fair Claims Settlement Practices Regulations). Judicial notice is taken of the existence and text
18 of these provisions as codified California law. The Court does not, by taking judicial notice of
19 these provisions, decide any disputed factual issue concerning the parties’ compliance with the
20 regulatory floor; nor does the Court, by taking notice, decide any pleading-sufficiency or anti-
21 SLAPP issue beyond the legal effect of the noticed provisions themselves.”

22
23 **V. SERVICE**

24 This Supplemental Request is served on Defendant’s counsel of record (Mark G. Tapp, Tyler J.
25 O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per Code
26 of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of Service
27 (POS-050) filed contemporaneously.

1 **VI. CLOSING**

2 For the foregoing reasons, Plaintiff respectfully requests that the Court take MANDATORY judi-
3 cial notice of the published California statutory and regulatory provisions identified herein.

4 _____
5 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body